

my response (except perhaps to your objections to the unjust enrichment cause of action) is not going to concede that the other causes of action are deficient.”].)

Sending a meet-and-confer letter to opposing counsel and asking them to let you know whether or not they will amend the complaint does not meet the letter or spirit of the meet and confer requirement of Code of Civil Procedure section 439, subdivision (a). Additionally, if there is a possibility of reducing the number of issues that comes up from written communications alone, it is imperative that the parties pursue that possibility by conducting a proper in person, telephone, or video-conference meet and confer. The hearing is therefore continued for the parties to meet and confer pursuant to the statute.

9. 9:00 AM CASE NUMBER: C24-02589
CASE NAME: MICHAEL HOFFMAN VS. PETER DOCTER
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: HOFFMAN, MICHAEL
TENTATIVE RULING:

Plaintiff Michael Hoffman and the other named plaintiffs (“Plaintiffs”) filed a Motion for Leave to File First Amended Complaint on January 16, 2026 (the “Motion for Leave to File”). The Motion for Leave to File was set for hearing on April 13, 2026.

The motion is unopposed. A Notice of Non-Opposition was filed on March 30, 2026.

The court has discretion “upon any terms as may be just” to allow an amendment to any pleading. Code Civ. Proc. § 473(a)(1); see Rule 3.1324 of California Rules of Court (“CRC”); see also *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 (“*Hong Sang Market, Inc.*”); see also Weil & Brown, et al., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 6:602 *et seq.* Leave to amend a pleading is entrusted to the sound discretion of the trial court. *Hong Sang Market, Inc.*, *supra*, 20 Cal.App.5th at 488.

Disposition

The Court further finds and orders as follows:

1. The Motion for Leave to File is GRANTED. Plaintiffs are granted leave to file an amended complaint herein. Such amended complaint shall be filed and served **within ten (10) days of notice of entry of this order.**
2. The Court shall issue the order after hearing.

10. 9:00 AM CASE NUMBER: C25-00149
CASE NAME: AMIR SAFFARIAN VS. ALI HASSAN
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: ARREAGA, GUILLERMO ARMANDO MARTINEZ
TENTATIVE RULING:

The demurrer of Defendants Guillermo Armando Martinez Arreaga, Rafael Antonio Martinez Arreaga, and SRGR Martinez Construction, Inc. to the First Amended Complaint of Plaintiff Amir Saffarian is **SUSTAINED WITH LEAVE TO AMEND.**

Defendants shall prepare the order and serve and file notice of entry of order. Plaintiff has 15 days from notice of entry of order in which to amend.

Background

Plaintiff Amir Saffarian alleges he owns two properties that he purchased intending to remodel and rent out , and that beginning in or about April 2023, Defendant Ali Hassan ("Hassan") and the other defendants induced him to proceed with a substantial construction and remodeling project. The operative First Amended Complaint ("FAC") alleges that Hassan held himself out as a licensed contractor, that Defendant Anthony Booker communicated payment instructions and project accounting, that Defendant Tri Valley Investments Inc. ("TVI") received wired funds, and that Arias and Arias Construction issued invoices and participated in carrying out the work. The FAC further alleges that the defendants acted as agents, employees, and officers of one another and that the corporate defendants were alter egos of the individual defendants.

Over the course of approximately nine months, Saffarian paid over \$922,000 in total, the bulk wired to TVI's Chase bank account, based on a stream of invoices with no itemized breakdowns, no written change orders, and no payment schedule. Costs ballooned far beyond the original \$31,075 estimate, with Defendants repeatedly presenting new invoices, change orders, and requests for additional funds, often after work had already been performed without Saffarian's prior approval.

In January 2024, when Saffarian requested lien releases and asked that remaining work be completed before a final payment of approximately \$66,000, Hassan abruptly abandoned both projects and directed all other defendants to stop work as well. Hassan also threatened to disclose unpermitted work, effectively admitting that much of the construction lacked required permits. Contra Costa County subsequently issued notices of violation and nuisance abatement proceedings regarding an unpermitted retaining wall the defendants built.

Saffarian asserts thirteen causes of action, including several state contractor law license violations, breach of contract, and fraud. Saffarian seeks disgorgement of all amounts paid, statutory penalties, punitive damages, attorney's fees, and equitable relief.

Paragraphs 15-18 collectively allege that fictitiously named Doe defendants are (1) unknown in identity, (2) legally responsible in some manner for the wrongful conduct alleged, (3) agents, employees, or officers of the other defendants who acted within the scope of that agency or employment with the permission and consent of the remaining defendants, and (4) the alter egos of the other defendants.

On September 12, 2025, Plaintiff filed a Doe Amendment substituting true names for three fictitious defendants previously designated in the FAC. Specifically, Plaintiff substituted Guillermo Armando Martinez Arreaga for DOE 1, Rafael Antonio Martinez Arreaga for DOE 2, and SRGR Martinez Construction, Inc. for DOE 3 (the "Martinez Defendants").

The Martinez Defendants now demur to the complaint for failure to state a cause of action and on grounds of uncertainty. Plaintiff opposes.

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (*Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)

The court should not sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Judicial Notice

Plaintiff requests judicial notice of nine documents consisting of public records: the CSLB license details and personnel lists for both Arias Construction and SRGR, statements of information filed with the California Secretary of State for both entities, the articles of incorporation of SRGR dated March 26, 2025, the certificate of dissolution of Arias Construction dated June 10, 2025, and an affidavit of death of trustee recorded in Alameda County on August 18, 2025.

Plaintiff's request for judicial notice of Exhibits 1 through 9 is GRANTED. However, the Court does not take judicial notice of the truth of the matters asserted in the documents.

Analysis

The Martinez Defendants argue the FAC is deficient because it contains no factual allegations against them whatsoever. They also assert they never met, spoke with, or interacted with Saffarian in any way. They never entered his properties, performed any work, entered into any contract with him, or received any payments. They add that SRGR Martinez Construction, Inc. ("SRGR") did not even exist until March 25, 2025, more than a year after the relevant events in this case, and did not have a contractor's license until June 2025. The individual Martinez Defendants assert that they did not become officers of Arias Inc. until March 3, 2024.

As to the specific causes of action, Defendants argue that Business and Professions Code sections Saffarian invokes do not create a private right of action, but are instead regulatory statutes enforceable only by the Contractors State License Board. For the claims that do support private actions, such as fraud and breach of contract, Defendants argue the FAC fails to plead the required elements as to the Martinez Defendants. Defendants argue the alter ego and successor liability theories fail because the FAC pleads only bare conclusions with no supporting facts, such as commingling of funds, shared assets, or absorption of Arias Inc. by SRGR. The Martinez Defendants ask the court to sustain the demurrer without leave to amend.

In opposition, Plaintiff explains that he seeks to hold the Martinez Defendants liable as officers of Arias Construction who authorized, directed, or meaningfully participated in the tortious conduct

underlying the case. Plaintiff alleges he was originally ignorant of their identities and connection to the wrongdoing, but subsequently discovered through public records that Guillermo and Rafael Martinez held officer positions in Arias Construction during the operative period, with Guillermo serving as CEO and Rafael as Secretary, and that both were associated with Arias Construction's and SRGR's CSLB contractor licenses. Plaintiff also argues that SRGR is a mere continuation of Arias Construction, formed at the same address by the same officers shortly after the Martinez Defendants were served with the FAC, and that the subsequent dissolution of Arias Construction without notice to creditors was an attempt to evade existing liability.

Plaintiff additionally objects that the demurrer improperly relies on factual assertions that do not appear on the face of the complaint, including claims that Plaintiff never met or interacted with Guillermo or Rafael, that they never entered the subject properties, and that no facts connecting them to the alleged misconduct could ever be pleaded. none of which are proper grounds for demurrer. Finally, Plaintiff asserts that the Martinez Defendants' post-complaint conduct, including incorporating SRGR, allowing Arias Construction to default, and dissolving it while litigation remained pending, independently supports amendment of the complaint.

The Doe amendment procedure allows a plaintiff to bring in a previously unknown defendant, but it does not relieve him of the obligation to plead facts sufficient to state a cause of action against that defendant especially where that issue is raised by demurrer. Therefore, Defendants' demurrer is sustained with leave to amend for Plaintiff to allege facts to support his legal theories against them.

Disposition

Defendants' demurrer is **SUSTAINED WITH LEAVE TO AMEND**. Defendants shall prepare the order and serve and file notice of entry of order. Plaintiff has 15 days from notice of entry of order in which to amend.

11. 9:00 AM CASE NUMBER: C25-00975
CASE NAME: WC PROPERTIES (EDENS), LLC, VS. PET PROS LLC (WA),
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT**
FILED BY: PET PROS LLC (WA),
TENTATIVE RULING:

Defendant Pet Pros LLC (WA) ("Pet Pros") filed a Motion to Set Aside Default on November 21, 2025 (the "Motion to Set Aside Default"). The Motion to Set Aside Default was set for hearing on April 13, 2026. The motion is unopposed. A Notice of Non-Opposition was filed on April 3, 2026.

Background

Plaintiff filed a Complaint on April 7, 2025. A default was entered against Pet Pros on May 29, 2025. No default judgment has been entered as yet.

Analysis

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from "his or her mistake, inadvertence, surprise, or excusable neglect." Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480